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General Comment

As a member of the Writers Guild of America who specializes in science-based stories and has extensive experience with AI -- please see my Vanity Fair column below -- I would like to argue for the necessity of respecting existing copyright with regards to any AI Action Plan, especially in regards to training data and the individual rights holders of all intellectual property.

Obviously, as a writer I have a deep, personal stake and self-interest in protecting copyright. But I also think there are two compelling reasons that, even for an office like the National Science Foundation, the protection of copyright is actually critical to AI advancement despite the public comments made by Google and OpenAI. As for-profit entities -- notwithstanding OpenAI's non-profit status, it is clearly profit-focused -- they have a vested interest in gaining access to copyrighted material for free. They are rent seekers and as any economist will tell you, rent seekers tend to avoid the competition for innovation at all costs. Even if that means upending the copyright system we've organically developed in this country since its founding.

This is my first reason: such a push might result in developmental stagnation by de-incentivizing OpenAI and Google to find better, alternate paths to AI that respect the needs of rights holders. As a creative writer, I assure you sometimes limitations spur greater creativity. And I think the recent case of DeepSeek illustrates this principle applies to AI as well.

My second reason has to do with the inherent destruction of incentives for creative thinkers that abandoning copyright structures whole cloth (as OpenAI and Google wish) would entail. Any AI is only as good as its training data: all models create a searchable manifold out of this training data composed of the training data points themselves and the interpolations between them that the AI weaves together in its training process. However, to EXPAND that manifold requires NEW training data. What is the source of this new training data?

Human creativity. Human creativity is more than just the remixing of everything that has come before -- it is the ingestion through culture, art and science of experience and information by human brains to expand the frontiers of thought and possibility. Even AI systems need new insight and new data. Relying solely on what has come before, even if it is regurgitated through synthetic data, will weaken and diminish any future AI systems. And if the incentives to human authors, artists, and scientists to create that new data aren't sufficient, then those new modes of thinking, of possibility, of pushing the boundaries, will not be found. We will stay stuck "within the box."

While this might sound quaint and romantic coming from a writer to a collection of esteemed scientists such as yourselves, I assure you it is not. I worked on a television show called *Strange Angel*, about the start of rocket science in America during the lead up to World War 2. At the time, escape from earth's gravity was thought to be impossible. Even at a hallowed institution like CalTech, scientific consensus thought the idea of sending a rocket to the moon was preposterous. But young students like Frank Malina, inspired by Jules Verne and classic science fiction, kept pushing to defy scientific consensus. And they eventually succeeded. The same was true even of the Germans under Werner Von Braun. In fact, Malina and his associate Jack Parsons bonded with Von Braun (before the war) over this shared love of science fiction. This is not just a one off. It happens all the time, even today. I once worked with the writer Ron Moore who shared with me a story of Elon Musk telling him he was inspired to push Tesla into robotics by the world imagined in Ron's show *BattleStar Galactica*.

Writing, artistry, these are already fragile endeavors. Making a living in them is hard, and the most creative minds -- the ones most likely to think the crazy thoughts that expand the frontiers of knowledge -- often struggle to survive the longest. Copyright, while not perfect, goes a long way toward making it more possible for creators to survive. Damaging that system in anyway would inevitably lead to a creative impoverishment of our society as a whole. And certainly for any future attempts to build powerful AI systems that outcompete the rest of

the world. While I can only make a prediction, my gut belief is that the country that achieves the most with AI will be the country that protects its most creative thinks and ensures them a way to survive financially.

Writers and artists are the research and development sector of humanity. Cutting this "R&D budget" -- killing the font of new training data -- will only ensure America loses the AI race to those who don't.

https://www.vanityfair.com/hollywood/2023/07/ai-may-kill-us-all-but-itll-never-write-a-good-movie?srltid=AfmBOosSgxwwVNuf&PcSYPC-MirW1MikLUIE4AHO4aE_7LdqJEWp3lw